



Shingi <samudzi@gmail.com>

FINAL NOTICE REGARDING UNLAWFUL POSSESSION OF PRIVATE SEXUAL IMAGES

Shingi <samudzi@gmail.com>

Wed, May 21, 2025 at 5:18 PM

To: Ben M <TexasIsJustOK@gmail.com>, bmeers@dspolitical.com

Cc: "bfarrell@dspolitical.com" <bfarrell@dspolitical.com>, eloise.lepesqueur@winwithoptimal.com, elepesqueur@dspolitical.com

Date: 21 May 2025**Deadline for written resolution:** 5 p.m. CT on **26 May 2025**

Hello Mr. Meers,

You have again ignored my attempt at communication and the 48 hour window for affirming receipt of my message has passed. I notice that the emails sent to both you and your employer's HR have been opened over 40 times, indicating deliberate silence rather than non-delivery.

I would like to highlight the substantial evidence establishing your continued possession and by extension, criminal liabilities for same:

1. **Forensic extraction (17 May 2025)** captured **770** photos/videos from Ms. McIntosh's Google Drive archive under SHA-256 hash.
2. **EXIF metadata** ties at least **211** files to devices *not owned by Ms. McIntosh*.
3. **Content review** showed multiple front-camera images and videos in which you appear alone in explicit sexual acts - some of them involving pictures or videos of Ms. McIntosh on a device next to you - demonstrating you personally produced and transmitted part of the material.
4. **Joint-scene footage:** in most videos where both you and Ms. McIntosh appear, you are seen filming simultaneously with a second device - strong probable cause that you retain additional content not shared with Ms. McIntosh in your own device/cloud accounts. Some of those videos - including one simulation of a "casting couch" pornography scene - contain professional looking camera setups with devices and equipment not owned by Ms. McIntosh. Strong probable cause of intent to distribute.
5. **Signal message metadata:** The files not produced by Ms. McIntosh's devices were primarily received on Ms. McIntosh's phone via Signal. Even where disappearing messages are enabled, forensic analysis can still recover message-level metadata (timestamps, locations, device IDs) from both Ms. McIntosh's and your devices and cellular records, establishing the dates of sharing that align with the

image/video metadata. You have neither denied possession nor complied with repeated deletion requests.

6. **Filming locations:** Visible landmarks, metadata dates and Ms. McIntosh's travel records can confirm that portions of the footage were captured in **Columba, MO (Boone County), Las Vegas, NV (Clark County); San Francisco, CA (San Francisco County); Santa Fe, NM (Santa Fe County); St. Louis, MO (St. Louis County); Lawrence, KS (Douglas County); Kansas City, MO (Jackson County); and Dallas, TX (Dallas County)**. These multi-state capture sites explain the breadth of prosecutorial venues referenced below.
7. **Potential witness-tampering exposure:** Ms. McIntosh's first documented request for you to delete all intimate images (and to not contact her again) was conveyed via email on **8 Nov 2024**; any attempt by you or your agents to coerce her into erasing or concealing evidence or to not pursue legal action after that date may constitute *witness tampering* under Missouri § 575.270, Kansas § 21-5909, and comparable statutes in the other referenced jurisdictions.
8. **Behavior-pattern corroboration:** these episodes align with the internal memorandum prepared by former Kansas Democratic Party staff documenting a recurring pattern of surveillance and psychological abuse towards women.

Collectively, these facts satisfy probable cause for a **search warrant** targeting your phones, computers, and cloud storage under Missouri § 565.252 and Kansas § 21-6101(a)(9) and comparable statutes in the other referenced jurisdictions.

Criminal exposure (possession & refusal to delete)

Jurisdiction	Statute & level	Key element satisfied by current evidence
Missouri	§ 565.252 – <i>Invasion of Privacy</i> (Class A misdemeanor; Class E felony if repeated acts)	Knowing creation/retention of intimate images without consent; multiple acts shown by 770 files.
Kansas	K.S.A. 21-6101(a)(9) – <i>Breach of Privacy</i> (Severity-5 person felony)	Knowing possession of private sexual images with intent to harass/intimidate after consent withdrawn.
Nevada	NRS 200.780 – <i>Unlawful Possession of Intimate Images</i> (Category D felony)	Possession of intimate image without consent when taken in Nevada; refusal to delete demonstrates intent.
California	Penal Code § 647(j)(4) – <i>Invasion of Privacy</i> (Misdemeanor; wobbler felony on aggravation)	Knowing retention of an intimate image taken under expectation of privacy after consent withdrawn.

New Mexico	NMSA § 30-37-7 – <i>Unlawful Possession of Intimate Images</i> (Fourth-degree felony)	Possession of intimate visual recording without consent; continued retention after demand to delete.
Texas	Texas Penal Code § 21.16 – <i>Unlawful Disclosure or Promotion of Intimate Visual Material</i> (State-jail felony)	Knowing possession or promotion of intimate visual material without consent; refusal to delete after demand and professional camera setup in certain videos supports potential intent to distribute.
Federal	“Take It Down Act” (18 U.S.C. §§ 2330A-2330D)	Under the Trump-era Take It Down Act, a federal prosecutor—eager for a headline-worthy prosecution—would view an indictment of a former senior Democratic official as both politically and reputationally devastating for Mr. Meers and the Party.

Path to private resolution

My aim remains **accountability and respect for privacy, not monetary windfall**. I prefer an out-of-court resolution that, at minimum provides:

1. **Certified deletion** – written declaration from you that *all* copies (local and cloud) of the 770 files from Ms. McIntosh's archive—and any duplicates—have been permanently erased.
2. **Return of originals** – secure transfer of any and all remaining physical or digital media not previously shared with Ms. McIntosh containing her likeness for independent verification and deletion.
3. **Proof of compliance** – production of deletion logs or third-party attestations (e.g., iCloud “Delete Account Data” receipt).

Final deadline

Absent a substantive written response by **5 p.m. CT on 26 May 2025**, I will:

- Present the evidentiary packet to the **Boone County Prosecutor** in Missouri and request criminal charges for invasion of privacy.
- Provide parallel referral to the **Douglas County (Kansas) District Attorney** under § 21-6101.

- **Make parallel referrals** to the District Attorneys in **Clark County (Nevada), San Francisco County (California), Santa Fe County (New Mexico), St. Louis County (Missouri), Jackson County (Missouri), and Dallas County (Texas)** under their respective non-consensual-image statutes.
- Deliver a federal intake dossier to the **U.S. Attorney for the Western District of Missouri** under the Take It Down Act - note that covered services under this act include cloud services like Google Drive.
- Pursue all civil remedies (intrusion upon seclusion, IIED, negligent infliction, privacy torts) and seek injunctive relief plus costs.

How to respond

Direct all correspondence to:

Shingai Samudzi

2890 S. Hancock Hills Rd, Rocheport, MO 65279

OR

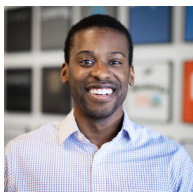
samudzi@gmail.com

Subject: "Ben Meers – Response to Final Notice re Unlawful Possession of Intimate Images"

This notice is issued in good faith from me rather than from legal counsel to afford you an opportunity for voluntary compliance with minimum public visibility and expense, and should not be interpreted as a lack of seriousness or evidence. **Silence will be treated as acknowledgment of culpability and refusal to delete**, and escalation will immediately proceed as outlined above.

I appreciate your prompt attention to this matter.

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Shingai Samudzi

www.asoba.co | [Schedule a call](#)